

University of Nepal Act, 2024

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NEPAL UNIVERSITY ACT, 2081

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An Act Made to Provide for Nepal University

Preamble: Whereas, it is desirable to establish and operate a public university as an excellent academic center that produces competent, responsible, creative, entrepreneurial, and competitive human resources capable of contributing to the overall development of the country by making higher education studies, teaching, and research quality-oriented, life-skills based, innovative, and contemporary,

The Federal Parliament has enacted this Act. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act shall be called the "Nepal University Act, 2081".

(2) This Act shall come into force on the thirty-first day from the date of its certification. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Faculty Member" means a Professor, Associate Professor, or Assistant Professor of the University and also includes an Endowed Professor, Emeritus Professor, Professor of Practice, Instructor, or Visiting Professor.

(b) "Vice-Chancellor" means the Vice-Chancellor referred to in Section 18.

(c) "Chancellor" means the Chancellor referred to in Section 17.

(d) "Dean" means the Dean referred to in Section 26.

(e) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act.

(f) "Office Bearer" means the office bearers referred to in Section 6.

(g) "Council" means the Council of Protectors referred to in Section 7.

(h) "Ministry" means the Ministry of the Government of Nepal dealing with education matters.

(i) "University" means Nepal University referred to in Section 3.

(j) "Educationist" means a person who has obtained a PhD degree from a university recognized by the Government of Nepal and has acquired at least ten years of experience in the field of study, teaching, or research.

(k) "Member" means a member of the Council. Chapter-2

Establishment of the University

3. Establishment of the University: (1) Nepal University is established to produce competent, responsible, creative, and competitive human resources through multi-disciplinary quality studies, teaching, and research based on an interdisciplinary concept (Liberal Arts), and to contribute to building a prosperous nation by creating new knowledge and fostering innovation.

(2) The University and its central office shall be located at a place designated by the Government of Nepal outside the Kathmandu Valley upon the recommendation of the Council. 4. University to be an Autonomous, Self-Governing, and Organized Institution: (1) The University shall be an autonomous, self-governing, and organized institution with perpetual succession and shall be a legal entity.

(2) The University, in its capacity as a legal person, shall exercise rights, perform duties, and discharge liabilities in accordance with prevailing laws. Chapter-3

Organization of the University and Office Bearers

5.

6. Office Bearers of the University: The University shall have the following office bearers:-

(a) Chancellor,

(b) Vice-Chancellor,

(c) Registrar,

(d) Deans, and

(e) Directors. 7. Council of Protectors: (1) There shall be a Council of Protectors as follows as the supreme body of the University:-

(a) Vice-Chancellor -Member

(b) Secretary, Ministry -Member

(c) Secretary, University Grants Commission -Member

(d) Secretary, Ministry dealing with education of the Province where the University is located -Member

(e) Head of the local level where the central office of the University is situated -Member

(f) Two persons, including at least one woman, nominated from amongst educationists who have made outstanding contributions to the field of educational development and advancement -Member

(g) Five persons, including at least two women, nominated from amongst individuals who have contributed to the establishment or operation of universities in Nepal or from academic persons -Member

(h) Three persons nominated, one each from amongst industrialists, employers, and farmers -Member

(i) Two persons nominated from amongst donors who provide financial support to the University as determined by the Council of Protectors -Member

(j) Three persons, including at least one woman, nominated from amongst individuals who have contributed to the fields of public administration, management, academic research or who have experience serving at a high level of the Government of Nepal service -Member

(k) Registrar -Member-Secretary

(2) For the purpose of clause (e) of sub-section (1), if the University is located in more than one local level, the head of the local level shall represent the Council on an annual rotation basis according to the Nepali alphabetical order of the names of such local levels.

(3) The members referred to in clauses (c), (f), (g), (h), and (i) of sub-section (1) shall be nominated by the Chancellor upon the recommendation of the Recommendation Committee referred to in Section 20.

(4) Notwithstanding anything written in sub-section (3), for the first time after the commencement of this Act, the members referred to in clauses (c), (f), (g), (h), and (i) of sub-section (1) shall be nominated by the Ministry upon the recommendation of the Nepal University Infrastructure Development Committee.

(5) The Recommendation Committee referred to in Section 20, while recommending nominations for members pursuant to sub-section (3), or while making nominations pursuant to sub-section (4), shall do so on the basis of the principle of inclusion.

(6) The term of office of a member nominated pursuant to this section shall be four years.

Provided that, while determining the term of office of members nominated pursuant to sub-section (4) after the commencement of this Act, the term shall be fixed by lottery so that the term of one-third of the members is two years, the term of another one-third is three years, and the term of the remaining one-third is four years.

(7) The term of office of a member nominated pursuant to sub-section (4) shall commence from the date of nomination, subject to sub-section (6).

(8) If the office of a member nominated pursuant to this section falls vacant, the nomination shall be made from the same group from which the vacancy occurred.

(9) A person possessing the following qualifications shall be eligible to be nominated as a member pursuant to sub-section (1):

(a) Has completed the age of thirty-five years,

(b) Has obtained at least a Master's degree from a recognized educational institution,

(c) Has not been punished by a court for corruption, rape, human trafficking and transportation, sale and distribution or transportation of narcotic drugs, money laundering, passport misuse, abduction, or other criminal offenses involving moral turpitude,

(d) Is not disqualified for appointment or nomination to a public office under prevailing laws, and

(e) Is of high moral character. Provided that the provisions of clauses (a) and (b) shall not apply in the case of a member nominated pursuant to clause (i) of sub-section (1).

(10) The nomination process pursuant to this section shall be initiated at least three months before the expiry of the term of office of the members nominated pursuant to sub-section (1).

(11) If any member nominated pursuant to sub-section (1) fails to fulfill his/her official responsibilities, or does not conduct himself/herself in a manner befitting the office, or does not perform his/her duties honestly, or does any act contrary to the interest of the University, or is convicted of a criminal offense involving moral turpitude, the Council may remove such member from office. Provided that, before such removal, the member shall be given a reasonable opportunity to present a defense.

(12) If any member of the Council remains absent from three consecutive meetings of the Council without prior notice to the Chancellor and without a reasonable cause, such member shall be automatically released from office. 8.

Meeting of the Council: (1) A meeting of the Council shall be held at least four times a year. (2) The interval between one meeting and the next meeting of the Council pursuant to sub-section (1) shall not exceed four

months. (3) The meeting of the Council shall be held on the date, time, and place specified by the Chancellor. (4) Notice of a meeting, along with the agenda of the subjects to be discussed, shall be given by the Member-Secretary of the Council to all members at least seven days before the meeting. (5) If more than fifty percent of the members currently holding office are present in the Council, it shall be deemed that the quorum is complete for the meeting. (6) The meeting of the Council shall be chaired by the Chancellor, and in his/her absence, the meeting shall be chaired by the Vice-Chancellor. (7) The opinion of the majority shall prevail in the meeting of the Council, and in case of a tie, the person chairing the meeting shall cast the deciding vote. (8) The decisions of the Council meeting shall be certified by the person chairing the meeting and the Member-Secretary and kept on record. (9) Professors or student representatives of the University, or distinguished domestic or foreign scholars, or professors from renowned universities, or educationists may be invited to the meeting of the Council. Provided that such person shall not have the right to vote. (10) Other procedures relating to the meeting of the Council shall be as determined by the Council itself. 9. Provision Relating to Special Meeting: (1) One-fourth of the members of the Council may request to call a special meeting of the Council stating the basis and reason. (2) If a special meeting is requested pursuant to sub-section (1), the Chancellor shall call the meeting within fifteen days from the date of such request, and only the subject for which the meeting was called pursuant to sub-section (1) may be discussed and decided in such meeting. (3) If the Chancellor is absent or fails to call a meeting pursuant to sub-section (2), the Vice-Chancellor shall call the meeting within seven days from the date of expiry of the period under sub-section (2), and if the Vice-Chancellor is absent or also fails to call the meeting, the most senior member among the members in terms of age shall call the meeting, and the most senior member present among the attending members shall chair such meeting. (4) Other provisions relating to the conduct and decision-making process of a special meeting shall be as per Section 8. 10.

Functions, Duties, and Powers of the Council: In addition to the functions, duties, and powers mentioned elsewhere in this Act, the functions, duties, and powers of the Council shall be as follows: (a) To determine policies and standards relating to the academic, educational, financial, and management aspects of the University, (b) To approve the short-term and long-term plans and strategies of the University in line with its objectives, (c) To approve the annual budget and programs of the University, (d) To manage or cause to manage the resources necessary for the University, (e) To determine and approve the degrees to be conferred by the University, (f) To grant approval for the establishment of Schools, Research Centers, and the operation of new programs necessary for conducting the educational programs of the University, (g) To protect and promote the academic values and reputation of the University, (h) To contact, negotiate, and collaborate at the national and international level to mobilize necessary financial resources for the University, (i) To prepare and construct or cause to construct the master plan for the physical infrastructure of the University, (j) To appoint auditors, discuss and approve the audit report, (k) To discuss and approve the annual report of the Council, and (l) To perform other necessary functions for achieving the objectives of the University. 11. Formation of Academic Council: (1) There shall be an Academic Council as follows, functioning as the body to organize the educational, academic, and research activities of the University: (a) Vice-Chancellor - Coordinator (b) One person from amongst the Deans - Member (c) One person from amongst the Directors - Member (d) Three persons, including at least one woman, from amongst the Professors of the University - Member (e) Two persons, including at least one woman, from amongst subject experts ensuring representation of different disciplines from the programs operated by the University - Member (f) Registrar - Member-Secretary (2) The members referred to in clauses (b), (c), (d), and (e) of sub-section (1) shall be nominated by the Council upon the recommendation of the Vice-Chancellor. (3) The term of office of the nominated members referred to in clauses (b), (c), (d), and (e) of sub-section (1) shall be

four years. (4) Domestic, foreign, or non-resident Nepali professors, researchers, or student representatives may be invited to the meeting of the Academic Council. (5) The procedures relating to the meeting of the Academic Council shall be as determined by the Academic Council itself. 12.

Functions, Duties, and Powers of the Academic Council: The functions, duties, and powers of the Academic Council shall be as follows: (a) To approve various academic programs of different disciplines to be operated by the University after assessing the need, relevance, and institutional capacity of the University, (b) To approve the curriculum, teaching methods, and examination system of subjects to be studied and trained in the University, (c) To ensure excellence in the academic programs operated under the University, (d) To determine policies for the academic, research, and innovation-related programs of the University, (e) To determine the educational qualifications of faculty members, (f) To prescribe the qualifications of students wishing to enroll in the University, the number of students to be enrolled, and the basis, criteria, evaluation methods, and procedures required for enrollment, (g) To perform necessary functions to maintain the academic quality of the University, (h) To recommend to the Council for various degrees to be conferred by the University and confer approved degrees, (i) To provide suggestions to the Executive Council on academic, research, and investigative matters, (j) To form committees or task forces as necessary in the context of performing the functions of the Academic Council, and (k) To perform other functions related to the Academic Council. 13. Executive Council: (1) There shall be an Executive Council as follows, functioning as the executive body of the University: (a) Vice-Chancellor - Coordinator (b) One person from amongst the Deans - Member (c) One person from amongst the Directors - Member (d) One person from amongst the Professors of the University - Member (e) Registrar - Member-Secretary (2) The members referred to in clauses (b), (c), and (d) of sub-section (1) shall be nominated by the Council upon the recommendation of the Vice-Chancellor. (3) The procedures relating to the meeting of the Executive Council shall be as determined by the Executive Council itself. 14.

Functions, Duties, and Powers of the Executive Council: In addition to the functions, duties, and powers mentioned elsewhere in this Act, the functions, duties, and powers of the Executive Council shall be as follows: (a) To implement or cause to implement the decisions and directives of the Council, (b) To prepare the annual budget and programs, progress reports, audit reports, and other proposals of the University and submit them to the Council for approval, (c) To operate, oversee, and protect the fund and movable and immovable property of the University, (d) To submit proposals to the Council for operating Schools and running new programs necessary for conducting the educational and academic programs of the University, (e) To determine tuition fees, (f) To ensure or cause to ensure the quality of education, research, and publication provided by the University, (g) To coordinate and collaborate with the Government of Nepal, Provincial Government, Local Level, Cooperatives, and the Private Sector as necessary for the systematic operation of the University, (h) To hear or cause to hear complaints received regarding the work and activities of the University, (i) To mobilize financial and physical resources required by the University, and (j) To perform or cause to perform other functions assigned by the Council. Chapter-4 Schools and Research Centers 15. Schools: (1) The University shall have as many departmental schools as necessary for the purpose of study, teaching, and research. (2) One or more programs may be operated under the same school based on student numbers, adequacy of physical resources and facilities, and workload. (3) Other provisions relating to the operation of a school shall be as prescribed. 16. Research Centers: (1) Research Centers may exist in the University as necessary for conducting research and innovation-related activities. (2) Other provisions relating to Research Centers shall be as prescribed. Chapter-5 Office Bearers, Faculty Members, and Employees of the University 17.

Chancellor: (1) The Chancellor shall be the head of the University. (2) The Chancellor shall preside over the convocation ceremony of the University. (3) The members of the Council shall select the Chancellor from amongst the members nominated pursuant to clauses (c), (f), (g), (h), and (i) of sub-section (1) of Section 7. (4) Notwithstanding anything written in sub-section (3), until the appointment of the Chancellor after the commencement of this Act, the member designated by the Ministry upon the recommendation of the Nepal University Infrastructure Development Committee from amongst the members nominated pursuant to sub-section (4) of Section 7 shall act as the Chairperson of the Council of Protectors. (5) The selection process shall be initiated at least three months before the expiry of the term of office of the Chancellor. (6) The term of office of the Chancellor shall be four years, and he/she may be reappointed for another term. 18. Vice-Chancellor: (1) There shall be one Vice-Chancellor in the University to perform functions as the executive head of the University. (2) The Council shall appoint the Vice-Chancellor upon the recommendation of the Recommendation Committee referred to in Section 20. (3) The appointment process shall be initiated at least three months before the expiry of the term of office of the Vice-Chancellor. (4) The term of office of the Vice-Chancellor shall be four years, and he/she may be reappointed for another term. 19. Qualification for Vice-Chancellor: A person possessing the following qualifications shall be eligible to be appointed as the Vice-Chancellor: (a) Has obtained a PhD degree from a recognized university, (b) Has at least fifteen years of experience in the academic field, (c) Has demonstrated excellent management skills and abilities in the field of educational or academic advancement, (d) Has completed the age of thirty-five years, and (e) Is of high moral character. 20.

21. Functions, Duties, and Powers of the Vice-Chancellor: (1) In addition to the functions, duties, and powers mentioned elsewhere in this Act, the functions, duties, and powers of the Vice-Chancellor shall be as follows:

- (a) To implement or cause to implement the decisions and directives of the Council,
- (b) To control and oversee all work and activities of the University,
- (c) To give directives on matters within his/her jurisdiction in the work and activities of the University,
- (d) To coordinate, monitor, and evaluate or cause to coordinate, monitor, and evaluate the programs operated by the University and submit or cause to submit the report thereof to the Executive Council,
- (e) To have proposals to be submitted to the Council prepared,
- (f) To determine or cause to determine short-term and long-term programs for the development of the University,
- (g) To arrange resources required by the University,
- (h) To maintain or cause to maintain financial discipline, economy, and transparency,
- (i) To manage, secure, and protect or cause to manage, secure, and protect the property of the University,
- (j) To perform other works except those stated to be performed by any body or office bearer under this Act or rules made under this Act,
- (k) To analyze complaints related to the University and address and manage them,
- (l) To prepare financial, educational, and physical plans required by the University, and
- (m) To perform other works assigned by the Council.

(2) Information on the work and activities performed by the Vice-Chancellor pursuant to clause (j) of sub-section (1) shall be submitted by him/her to the immediately subsequent meeting of the Council.

(3) The Vice-Chancellor shall be accountable to the Council regarding his/her work and activities. 22.

Registrar: (1) There shall be one Registrar in the University.

(2) The Registrar shall be appointed by the Chancellor upon the recommendation of the Recommendation

Committee referred to in Section 20.

(3) The term of office of the Registrar shall be four years. 23. Qualification for Registrar: A person possessing the following qualifications shall be eligible to be appointed as the Registrar:

- (a) Has obtained at least a Master's degree from a recognized university,
- (b) Has at least ten years of experience in the field of academic or educational administration or research in higher education,
- (c) Has demonstrated excellent managerial skills and leadership abilities in the field of academic advancement,
- (d) Has completed the age of thirty-five years, and
- (e) Is of high moral character. 24.

Functions, Duties, and Powers of the Registrar: (1) In addition to the functions, duties, and powers mentioned elsewhere in this Act, the functions, duties, and powers of the Registrar shall be as follows: (a) To coordinate the academic affairs of the University, (b) To maintain the standards of teaching, training, and research, (c) To lead and coordinate the research work of the University, (d) To oversee, monitor, supervise, and evaluate the preparation and implementation of educational programs, (e) To perform functions relating to career development and academic exchange programs for faculty members and employees, (f) To perform functions relating to the awarding of medals and scholarships, (g) To perform functions relating to the determination, coordination, and evaluation of policies, plans, and programs for curriculum, textbooks, libraries, and examinations, (h) To coordinate at the national and international level on educational matters, (i) To perform functions relating to the regulation and management of the educational system, (j) To perform functions relating to policy determination, coordination, and evaluation of extracurricular activities, sports, and social service programs for students, (k) To perform functions relating to the oversight, control, evaluation, and coordination of subordinate office bearers and academic departments and teaching institutions, (l) To give directives for determining academic and educational quality, (m) To provide advice/suggestions and consultation to the Vice-Chancellor on academic matters, (n) To perform functions relating to the administration of faculty members and employees of the University, (o) To operate, account for, and audit or cause to audit the fund of the University, (p) To perform functions relating to mobilizing financial resources for the University, (q) To formulate policies and plans relating to internal administration and implement or cause to implement them, (r) To perform or cause to perform necessary functions relating to the management, protection, and operation of the University's property, (s) To prepare or cause to prepare the income and expenditure estimates of the University, (t) To inspect all bodies under the University including Schools, Research Centers and correct any deficiencies found in administrative and management work, (u) To oversee, control, and manage examinations conducted by the University, and (v) To perform other functions as per the directives of the Executive Council and the Vice-Chancellor. (2) While performing functions pursuant to sub-section (1), the Registrar shall do so under the general control and direction of the Vice-Chancellor. 25.

Removal from Office: (1) If the Chancellor fails to fulfill his/her official responsibilities, does not conduct himself/herself in a manner befitting the office, or does any act contrary to the interest of the University, at least three members currently holding office in the Council may submit a written application to the Council stating the basis and reason. (2) If the Vice-Chancellor fails to fulfill his/her official responsibilities, does not conduct himself/herself in a manner befitting the office, or does any act contrary to the interest of the University, at least five members currently holding office in the Council may submit a written application to the Chancellor stating the basis and reason. (3) If the Registrar fails to fulfill his/her official responsibilities, does

not conduct himself/herself in a manner befitting the office, or does any act contrary to the interest of the University, the Vice-Chancellor may recommend to the Council to remove the Registrar from office stating the basis and reason. (4) Upon receiving an application pursuant to sub-section (1) or (2) or a recommendation from the Vice-Chancellor pursuant to sub-section (3), the Council shall form a three-member investigation committee, chaired by a member of the Council, within twenty-one days to investigate the matter. (5) The investigation committee formed pursuant to sub-section (4) may also take assistance from office bearers of the University or other experts. (6) If the investigation committee, during its investigation, finds that the Chancellor, Vice-Chancellor, or Registrar has failed to fulfill his/her official responsibilities, has not conducted himself/herself in a manner befitting the office, or has done any act contrary to the interest of the University, it shall recommend to the Council for removal from office. Such recommendation shall be made within one month from the date of initiating the investigation-related work. (7) Before the investigation committee formed pursuant to sub-section (4) recommends for removal from office, the concerned office bearer shall be given a reasonable opportunity to present a defense against the allegations leveled against him/her. (8) Within thirty days from the date of receiving the recommendation pursuant to sub-section (7), a majority of the members currently holding office in the Council shall make a decision regarding the removal of the Chancellor, Vice-Chancellor, or Registrar from office. (9) From the date of recommendation for removal pursuant to sub-section (8) until the final decision thereon, the Chancellor, Vice-Chancellor, or Registrar shall be automatically suspended from his/her office. (10) In the event of the suspension of the Chancellor, Vice-Chancellor, or Registrar, other arrangements for the work performed by him/her shall be as decided by the Council. 26. Dean: (1) There shall be one Dean as a full-time office bearer acting as the head of each School.

Provided that, if necessary, there shall be no bar to assigning the responsibility of head of more than one School to a Dean. (2) The Executive Council shall appoint a person as Dean upon the recommendation of the Vice-Chancellor, who has obtained a Master's degree in the relevant discipline from a recognized university and has at least eight years of teaching-related experience. (3) The term of office of a Dean shall be four years. 27. Functions, Duties, and Powers of the Dean: (1) In addition to the functions, duties, and powers mentioned elsewhere in this Act, the functions, duties, and powers of the Dean shall be as follows: (a) To provide academic and educational leadership as the head of the School, (b) To perform or cause to perform necessary functions for the development of the standard of teaching and research in subjects under the School, (c) To perform or cause to perform necessary functions for the quality development of teaching and research conducted under the School, (d) To recommend providing support and facilities for education and research conducted under the School, (e) To act as the inspector, manager, overseer, and coordinator of teaching conducted under his/her School as specified by the Executive Council, and (f) To perform or cause to perform other functions assigned by the Vice-Chancellor. (2) While performing functions pursuant to sub-section (1), the Dean shall do so under the general control and direction of the Vice-Chancellor. 28. Director: (1) There shall be a Director as the head of a Research Center. (2) The Executive Council shall appoint a Director upon the recommendation of the Vice-Chancellor from amongst persons who have obtained a Master's degree from a recognized university and have at least five years of experience in the relevant subject and field. (3) The term of office of a Director shall be four years. 29. Functions, Duties, and Powers of the Director: (1) The functions, duties, and powers of the Director shall be as follows: (a) To formulate and implement or cause to implement the periodic plan of the Research Center, (b) To prepare annual programs, plans, and budgets of the Research Center and submit them for approval, (c) To manage and mobilize resources for program implementation, perform or cause to perform delegated and directed tasks, and (d) To perform or cause to perform other functions assigned by the Vice-Chancellor. (2) While

performing functions pursuant to sub-section (1), the Director shall do so under the general control and direction of the Vice-Chancellor. 30.

Removal of Dean and Director: (1) Notwithstanding anything written in sub-section (3) of Section 26 and sub-section (3) of Section 28, any person may submit an application to the Vice-Chancellor stating that the Dean or Director has failed to fulfill his/her official responsibilities, has not conducted himself/herself in a manner befitting the office, or has done any act contrary to the interest of the University. (2) If the content mentioned in the application pursuant to sub-section (1) appears to be based on credible grounds, the Executive Council may form an investigation committee consisting of three members, chaired by a member of the Executive Council, for the purpose of investigation. (3) If the investigation committee formed pursuant to sub-section (2), during its investigation, finds that the Dean or Director has failed to fulfill his/her official responsibilities, has not conducted himself/herself in a manner befitting the office, or has done any act contrary to the interest of the University, it shall recommend to the Executive Council for removal of such Dean or Director from office. (4) Upon receiving a recommendation pursuant to sub-section (3), the Executive Council shall recommend to the Vice-Chancellor for removal of such Dean or Director from office. (5) Before the investigation committee formed pursuant to sub-section (2) recommends for removal from office, the concerned person shall be given a reasonable opportunity to present a defense. (6) The Vice-Chancellor shall remove the Dean or Director from office based on the recommendation pursuant to sub-section (4). 31.

Provision Relating to Faculty Members, Researchers, and Employees: (1) The University shall have the necessary number of faculty members, researchers, and employees. (2) The Vice-Chancellor shall appoint faculty members, researchers, and employees to be borne from the University's own resources. (3) To recommend for the appointment of faculty members, researchers, and employees of the University, the Council shall form a Recruitment Committee. (4) The working procedures of the Recruitment Committee pursuant to sub-section (3) shall be as prescribed. (5) If any donor wishes to establish an endowment fund equivalent to the prescribed amount in the name of the University, without financial burden to the University, to bring a renowned domestic or foreign distinguished scholar in a specific discipline to contribute to the academic or research work of the University, the Vice-Chancellor may, with the consent of the Council, appoint such person as an Endowed Professor or Department Head, whose name shall be associated with the donor or a person desired by the donor. (6) The Vice-Chancellor may, with the approval of the Council and through the process as prescribed, confer the honor of Emeritus Professor upon a domestic or foreign senior professor who has been dedicated to the academic or research work of the University for a long time and has made distinguished contributions, as necessary. (7) The Vice-Chancellor may, fulfilling the process as prescribed according to the needs of the University, appoint a domestic or foreign expert or scholar possessing exceptional capacity or experience in a specific discipline of knowledge as a Visiting Professor or Professor of Practice. 32. Academic Collaboration: (1) Pursuant to technical assistance, agreement, or understanding with a foreign university, a serving or retired faculty member or expert of such foreign university may, as a volunteer or with such foreign university bearing his/her remuneration, conduct study, teaching, training, or any other academic work in the University. (2) If a position becomes vacant pursuant to Section 33 and immediate recruitment is not possible, the Registrar for central department employees, the Dean for faculty members, and the relevant Director for other employees may, with the approval of the Vice-Chancellor, engage persons on a contract basis against the approved post of the University. (3) The work, duties, rights, and remuneration, facilities, and terms of service of faculty members and employees engaged on a contract basis pursuant to sub-section (2) shall be as mentioned in such contract. 33.

Circumstances for Vacancy in the Office of an Office Bearer: The office of an office bearer shall be deemed

to have fallen vacant automatically in the following circumstances: (a) If he/she resigns from his/her office, (b) If his/her term of office expires, (c) If he/she is removed from office pursuant to this Act, (d) If he/she is punished by a court for corruption, rape, human trafficking and transportation, sale and distribution or transportation of narcotic drugs, money laundering, passport misuse, abduction, or other criminal offenses involving moral turpitude, (e) If he/she becomes unable to work in office due to physical or mental illness, or (f) In case of his/her death.

Chapter-6 Fund, Accounts, and Audit of the University

34. Fund of the University:

(1) There shall be a separate fund of the University. (2) The fund pursuant to sub-section (1) shall consist of the following amounts: (a) Amount received from the Government of Nepal, Provincial Government, or Local Level, (b) Amount received from the University Grants Commission, (c) Amount received as donations, gifts, endowments, or financial assistance from any person or institution, (d) Amount received from foreign persons or governments and international organizations or institutions, (e) Amount received from tuition fees, (f) Amount received from rights related to the intellectual property of the University, and (g) All other types of income earned by the University. (3) Before receiving the amount pursuant to clause (d) of sub-section (2), the University shall obtain the approval of the Ministry of Finance of the Government of Nepal. (4) The amount in the University's fund shall be deposited by opening an account in a licensed commercial bank pursuant to prevailing laws relating to banks and financial institutions. (5) All expenses of the University shall be borne from the fund pursuant to sub-section (1) as approved by